

ELIZABETH II



1988 CHAPTER ii

An Act to empower the Greater Manchester Passenger Transport Executive to construct further works and to acquire additional lands; to confer further powers on the Executive; and for other purposes.

[9th February 1988]

WHEREAS the area of the Greater Manchester Passenger Transport Executive (hereinafter referred to as "the Executive") is the metropolitan county of Greater Manchester:

And whereas it is the duty of the Executive under the Transport Act 1968 to secure the provision of such public passenger transport services as they consider it appropriate to secure for meeting any public transport requirements within their area in accordance with policies formulated by the passenger transport authority for their area: 1968 c. 73.

And whereas the extension of the light rapid transit system which the Executive are authorised to provide would be of great public advantage:

c. ii Greater Manchester (Light Rapid Transit System)
(No. 2) Act 1988

And whereas it is expedient that the Executive should be empowered to construct the works authorised by this Act and to acquire or use the lands referred to in this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Executive and that the other provisions in this Act should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works authorised by this Act, and a book of reference to such plans containing the names of the owners and lessees, or reputed owners and lessees, and of the occupiers of the lands which may be acquired or used compulsorily under the powers of this Act, have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office, House of Commons, with the chief executive of the Greater Manchester County Council and with the town clerk and chief executive of the Council of the City of Manchester and the chief executive of the Trafford Borough Council and such plans, sections and book of reference are in this Act respectively referred to as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas the said county council have approved the promotion of the Bill for this Act pursuant to section 10 (1) (xxix) of the Transport Act 1968:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Citation. 1. This Act may be cited as the Greater Manchester (Light Rapid Transit System) (No. 2) Act 1988.

Interpretation. 2.—(1) In this Act, unless the context otherwise requires—
“the authorised works” means the works authorised by this Act;
“the city” means the city of Manchester;
“the Executive” means the Greater Manchester Passenger Transport Executive;

“the existing railways” means the system of railways comprising—

PART I
—cont.

(a) so much of the existing Manchester South Junction and Altrincham Railway of the railways board as lies between the termination of Work No. 1 and the northern abutments of the bridge in the borough of Trafford carrying Moss Lane over that railway;

(b) so much of the existing railway of the railways board as lies between the commencement of Work No. 1 authorised by the Greater Manchester (Light Rapid Transit System) Act 1988 at reference point SJ 84216 99173 and the north side of the level crossing in the borough of Bury known as Buckley Wells crossing (reference point SD 79959 10249) whereby Baron Street is crossed by that railway; and

1988 c. i.

(c) the railway of the railways board authorised as Work No. 4 (Railway at Bury) of the British Railways Act 1975;

1975 c. i.

and includes all works and conveniences provided in connection with the said railways, as existing, altered or constructed (as the case may be) from time to time;

“the railways board” means the British Railways Board;

“the tribunal” means the Lands Tribunal.

(2) Where in this Act any distance or length is stated, or any reference point is referred to, in any description of works or functions, the reference to that distance, length or reference point shall be construed as if the words “or thereabouts” were inserted after such distance, length or reference point (as the case may be).

(3) Any reference in this Act to a work identified by the number of the work shall be construed as a reference to the work of that number authorised by this Act.

(4) References in this Act to reference points shall be construed as references to National Grid reference points.

3.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4 and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Part II of the Acquisition of Land Act 1981 applies and as if this Act were a compulsory purchase order under the said Act of 1981.

Part I of
Compulsory
Purchase Act
1965.

1965 c. 56.

1981 c. 67.

c. ii Greater Manchester (Light Rapid Transit System)
(No. 2) Act 1988

PART I
—cont.

(2) In subsection (1) of section 11 of the said Act of 1965, as so applied, for the words “fourteen days” there shall be substituted the words “three months”.

1845 c. 18.

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II

EXTENSION OF LIGHT RAPID TRANSIT SYSTEM

Power to
make works.

4.—(1) Subject to the provisions of this Act, the Executive may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In the city and the borough of Trafford—

1988 c. i.

Work No. 1 A tramroad 1860 yards (1710 metres) in length (double line) commencing by a junction with the commencement of Work No. 5 authorised by the Greater Manchester (Light Rapid Transit System) Act 1988 at reference point SJ 83255 97615 passing thence in a south-westerly direction and terminating by a junction with the existing Manchester South Junction and Altrincham Railway of the railways board between Deansgate and Old Trafford at reference point SJ 82110 96579;

In the borough of Trafford—

Work No. 2 A deviation of the existing Manchester to Liverpool (via Warrington) Railway of the railways board 601 yards (550 metres) in length (double line) commencing at reference point SJ 82311 97010 passing thence in a south-westerly direction and terminating at reference point SJ 81931 96628 on the Manchester to Liverpool Railway of the railways board;

In the borough of Trafford—

Work No. 3 Alterations at Deansgate Lane level crossing where the Manchester South Junction and Altrincham Railway of the railways board crosses Deansgate Lane on the level at reference point SJ 77353 89224;

In the borough of Trafford—

Work No. 4 Alterations at Navigation Road level crossing where the Manchester South Junction and Altrincham Railway of the railways board crosses Navigation Road on the level at reference point SJ 77258 88764;

In the borough of Trafford—

PART II
—cont.

Work No. 5 Alterations at Stockport Road level crossing where the Manchester South Junction and Altrincham Railway of the railways board crosses Stockport Road (closed to vehicular traffic) on the level at reference point SJ 77086 88164;

In the city—

Work No. 6 A new street 49 yards (45 metres) in length, connecting Whitworth Street with Lower Brook Street, commencing at reference point SJ 84629 97847 and terminating at reference point SJ 84632 97886.

(2) On the completion and opening for public use of Work No. 2, that work shall vest in the railways board and the railways board may maintain Work No. 2 which shall for all purposes form part of the undertaking of the railways board.

5. The tramroad (Work No. 1) shall be constructed on a gauge of 4 feet 8½ inches (1.435 metres).

Gauge of
Work
No. 1.

6. Subject to the provisions of this Act, the Executive in constructing the authorised works may deviate from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown on those plans and may deviate vertically from the levels shown on the deposited sections to any extent upwards or downwards and in constructing the tramroad (Work No. 1) they may alter the radius of any curve described on the deposited plans and increase or diminish any inclination or gradient shown thereon.

Power to
deviate.

7. Works Nos. 1 to 5 shall not be opened for public traffic until they have been inspected and certified to be fit for such traffic by the Secretary of State.

Approval of
Secretary of
State.

8. Any parts of the existing railways transferred to, and vested in, the Executive by agreement with the railways board under this Act and Work No. 1 shall be deemed to be tramways for the purposes of Parts II and III of the Tramways Act 1870, the Regulation of Railways Act 1871, Schedule 2 to the Telecommunications Act 1984 and this Part of this Act.

Certain
works to be
deemed
tramways,
etc.
1870 c. 78.
1871 c. 78.
1984 c. 12.

9.—(1) (a) The Executive and the railways board may enter into, and carry into effect, agreements for the transfer to, and vesting in, the Executive, or the Executive and the railways board jointly, of any part of the existing railways together with the rights and obligations of the railways board in relation thereto.

Agreements
with railways
board, etc.

c. ii Greater Manchester (Light Rapid Transit System)
(No. 2) Act 1988

PART II
—cont.

(b) Any agreement entered into by the Executive under this subsection with respect to the transfer or vesting of any part of the existing railways shall be subject to the approval of the Greater Manchester Passenger Transport Authority.

1968 c. 73.

(2) This section shall have effect without prejudice to the provisions of the Transport Act 1968 for the making of payments by the Executive to the railways board in respect of railway passenger services provided by the railways board and for entering into agreements between the Executive and the railways board for the provision of railway passenger services by the railways board.

1962 c. 46.

(3) On the opening of the light rapid transit system of the Executive for passenger services operated by the Executive or the Executive and the railways board jointly (as the case may be), section 56 of the Transport Act 1962 (which relates to the establishment and functions of transport consultative committees) shall apply and have effect in relation to the services and facilities provided upon the light rapid transit system as if for the references therein to the railways board, whether alone or in conjunction with other boards, there were substituted reference to the Executive, or to the Executive and the railways board jointly (as the case may be), but the provisions of the said section 56 and the provisions of section 54 of the Transport Act 1962 (which requires advance notice of discontinuance of certain services to be published) shall not apply in respect of the discontinuance of any existing railway passenger services from any station or on any line, or the discontinuance of any railway passenger or goods services provided by the railways board (as the case may be), for the purposes of, or in connection with, the construction of the authorised works (other than Work No. 6) or the transfer of any parts of the existing railways to form part of the light rapid transit system.

Extension of
powers, etc.
1988 c. i.

10.—(1) Part II of the Greater Manchester (Light Rapid Transit System) Act 1988 and section 43 (For protection of electricity, gas and water undertakers) and section 46 (Carriages deemed to be public service vehicles) of that Act shall have effect as if the references therein to the light rapid transit system included references to the authorised works (other than Work No. 6) and to any parts of the existing railways transferred to, and vested in, the Executive by agreement with the railways board under this Act.

(2) Section 22 (Provision as to repair of streets) of the said Act of 1988 shall have effect as if the new street (Work No. 6) were authorised by that section.

(3) Section 43 (For protection of electricity, gas and water undertakers) and section 44 (For protection of North West

Water Authority) of the said Act of 1988 shall have effect as if all references therein to that Act, except references to particular sections of that Act, included references to this Act, and as if the reference to the deposited plans in paragraph (3) of section 43 included a reference to the plans deposited in connection with the Bill for this Act.

PART II
— cont.

PART III

LANDS

11.—(1) Subject to the provisions of this Act, the Executive may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the authorised works or for any purpose connected with, or ancillary to, their undertaking.

Power to
acquire
lands.

(2) Without prejudice to the generality of subsection (1) above, the Executive may enter upon, take and use for the purpose of constructing sidings the lands numbered on the deposited plans 37 and 38 in the borough of Trafford.

12.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Executive after giving not less than 10 days' notice to the owner, lessee and occupier of the land in question may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

Correction of
errors in
deposited
plans and
book of
reference.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly, and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, with the clerk to the metropolitan county passenger transport authority and with the town clerk and chief executive of the Council of the City of Manchester and the chief executive of the Trafford Borough Council and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Executive to take the land and execute the works in accordance with the certificate.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

13. In determining a question with respect to compensation claimed in consequence of the compulsory acquisition of land under this Act, the tribunal shall not take into account any

Disregard of
recent
improvements
and interests.

PART III
—cont.

interest in land, or any enhancement of the value of any interest in land, by reason of any building erected, works executed or improvement or alteration made, whether on the land acquired or on any other land with which the claimant is, or was at the time of erection, executing or making of the building, works, improvement or alteration, directly or indirectly concerned, if the tribunal are satisfied that the creation of the interest, the erection of the building, the execution of the works or the making of the improvement or alteration, as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

Extinction of
private rights
of way.

1965 c. 56.

14.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall be extinguished on the acquisition of the land, whether compulsorily or by agreement or on the entry on the land in pursuance of section 11 (1) of the Compulsory Purchase Act 1965, as applied by this Act, whichever is the sooner.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Executive compensation to be determined in case of dispute by the tribunal.

Period for
compulsory
purchase of
lands.

15.—(1) The powers of the Executive for the compulsory acquisition of the lands which they are authorised to acquire by this Part of this Act shall not be exercised after 31st December 1991.

(2) The powers of the Executive for the compulsory acquisition of the said lands shall for the purposes of this section be deemed to have been exercised if before 31st December 1991, notice to treat has been served in respect of those lands.

PART IV

PROTECTIVE PROVISIONS

For protection
of British
Railways
Board.

16. For the protection of the railways board the following provisions shall unless otherwise agreed in writing between the Executive and the railways board apply and have effect:—

(1) In this section—

“construction” includes execution, placing, alteration and reconstruction and “construct” and “constructed” have corresponding meanings;

“the engineer” means an engineer to be appointed by the railways board;

“plans” includes sections, drawings, specifications, soil reports, calculations and descriptions (including descriptions of methods of construction);

“railway property” means any railway of the railways board and any works connected therewith for the maintenance or operation of which the railways board are responsible and includes any land held or used by the railways board for the purposes of such railway or works;

PART IV
—cont.

“specified works” means—

(a) the sidings to be constructed on the lands numbered on the deposited plans 37 and 38 in the borough of Trafford; and

(b) so much of the authorised works as may be situated upon, across, under or over or within 15 metres of, or may in any way affect railway property;

and includes the construction, maintenance, alteration and renewal of the specified works;

- (2) The Executive shall not under the powers of this Act acquire compulsorily any railway property or any other land of the railways board but they may, with the consent of the railways board, which consent shall not be unreasonably withheld, acquire such easements or other rights—

(a) in any railway property or any other land of the railways board delineated on the deposited plans as they may reasonably require for the purposes of the specified works and the Executive shall fence off the specified works from railway property or that other land to the reasonable satisfaction of the engineer where so required by him;

(b) as they may reasonably require in so much of the lands numbered on the deposited plans 37 and 38 in the borough of Trafford as is situated more than 5 metres from the outer rail of the railway;

- (3) Notwithstanding the provisions of section 6 (Power to deviate) of this Act or anything shown on the deposited plans and sections, the Executive—

(a) shall only construct Works Nos. 1 and 2 in, on, under or over any part of the land numbered on the deposited plans 18 in the city in such line or situation as the railways board may reasonably require; and

(b) in constructing Works Nos. 1 and 2 or either of them in, on, under or over any railway property, shall not deviate vertically from the levels shown on the deposited sections without the consent of the railways board;

PART IV
—cont.

- (4) During the construction of the specified works the Executive shall at all times ensure reasonable access to, and egress from—

(a) any station, depot or other operational premises of the railways board for vehicles and pedestrians;

(b) any other railway property for the railways board and their agents, contractors and employees (with or without vehicles, plant, machinery and materials):

- (5) The Executive shall before commencing the specified works (other than works of maintenance or repair) furnish to the railways board proper and sufficient plans thereof for the reasonable approval of the engineer and shall not commence the specified works until plans thereof have been approved in writing by the engineer or settled by arbitration:

Provided that if within 56 days after such plans have been furnished to the railways board the engineer shall not have intimated his disapproval thereof and the grounds of his disapproval he shall be deemed to have approved the same:

- (6) If within 56 days after such plans have been furnished to the railways board, the railways board shall give notice to the Executive that the railways board desire themselves to construct any part of the specified works which in the opinion of the engineer will or may affect the stability of railway property or the safe operation of traffic on the railways of the railways board then, if the Executive desire such part of the specified works to be constructed, the railways board shall construct the same with all reasonable dispatch on behalf of and to the reasonable satisfaction of the Executive in accordance with the plans approved or deemed to be approved or settled as aforesaid:

- (7) Upon signifying his approval or disapproval of the plans the engineer may specify any protective works (whether temporary or permanent) which in his opinion should be carried out before the commencement of the specified works to ensure the safety or stability of railway property and such protective works as may be reasonably necessary for those purposes shall be constructed by the railways board or by the Executive, if the railways board so desire, with all reasonable dispatch and the Executive shall not commence the construction of the specified works until the engineer shall have notified the Executive

that the protective works have been completed to his reasonable satisfaction:

PART IV
—*cont.*

- (8) (a) The Executive shall give to the railways board notice in writing of their intention to commence the construction of any of the specified works in accordance with sub-paragraph (b) below and, except in emergency (when they shall give such notice as may be reasonably practicable), also of their intention to carry out any works for the maintenance or renewal of the specified works;
- (b) The period of notice required to be given by the Executive to the railways board by virtue of sub-paragraph (a) above shall be—

(i) 6 months in any case where the engineer, upon signifying his approval or disapproval of plans furnished to the railways board under paragraph (5) above, has reasonably given it as his opinion that the construction, maintenance or renewal of the specified works will require the Executive to have temporary occupation of the permanent way of the railway (including land lying within a distance of 2 metres from any outer rail of the railway) or will necessitate the imposition of speed restrictions, or the substitution, diversion or suspension of train services; and

(ii) 28 days in all other cases:

- (9) The specified works shall, when commenced, be carried out—

(a) with all reasonable dispatch in accordance with the plans approved or deemed to have been approved or settled as aforesaid;

(b) under the supervision (if given) and to the reasonable satisfaction of the engineer;

(c) in such manner as to cause as little damage to railway property as may be; and

(d) so far as is reasonably practicable, so as not to interfere with or obstruct the free, uninterrupted and safe user of any railway of the railways board or the traffic thereon and the use by passengers of railway property;

and, if any damage to railway property or any such interference or obstruction shall be caused or take place, the Executive shall, notwithstanding any such approval as aforesaid, make good such damage and shall on demand pay to the railways board all reasonable expenses to which they may be put and

PART IV
—cont.

compensation for any loss which they may sustain by reason of any such damage, interference or obstruction:

(10) The Executive shall—

(a) at all times afford reasonable facilities to the engineer for access to the specified works during their construction;

(b) ensure access for the engineer at all reasonable times to all working sites, depots and premises at which materials to be employed in the construction of the specified works are being made, constructed or assembled;

(c) supply the engineer with all such information as he may reasonably require with regard to the specified works or the method of construction thereof:

(11) The railways board shall at all times afford reasonable facilities to the Executive and their agents for access to any works carried out by the railways board under this section during their construction and shall supply the Executive with such information as they may reasonably require with regard to such works or the method of construction thereof:

(12) If any alterations or additions, either permanent or temporary, to railway property shall be reasonably necessary in consequence of the construction of the specified works, such alterations and additions may be effected by the railways board after not less than 28 days' notice has been given to the Executive and the Executive shall pay to the railways board on demand the cost thereof as certified by the engineer including, in respect of permanent alterations and additions, a capitalised sum representing the increased or additional cost of maintaining, working and, when necessary, renewing any such alterations or additions:

(13) The Executive shall repay to the railways board all costs, charges and expenses reasonably incurred by the railways board—

(a) in constructing any part of the specified works on behalf of the Executive as provided by paragraph (6) above or in constructing any protective works under the provisions of paragraph (7) above including, in respect of any permanent protective works, a capitalised sum representing the cost of maintaining and renewing those works;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property and for preventing as far as may be all interference, obstruction, danger or accident arising from the construction, maintenance, renewal, repair or failure of the specified works;

(c) in respect of any special traffic working resulting from any speed restrictions which are necessary as a result of the construction, maintenance, renewal, repair or failure of the specified works and which may in the opinion of the engineer be required to be imposed or from the substitution, suspension or diversion of services which may be necessary for the same reason;

(d) in respect of any additional temporary lighting of railway property in the vicinity of the specified works being lighting made reasonably necessary as a result of the specified works or the failure thereof;

(e) in respect of the approval by the engineer of plans submitted by the Executive and the supervision by him of the specified works:

- (14) If at any time after the completion of the specified works, not being works vested in the railways board, the railways board shall give notice to the Executive informing them that the state of repair of the specified works appears to be such as prejudicially to affect railway property, the Executive shall, on receipt of such notice, take such steps as may be reasonably necessary to put the specified works in such state of repair as not prejudicially to affect railway property and, if and whenever the Executive fail to do so, the railways board may make and do in and upon the land of the railways board or of the Executive all such works and things as shall be requisite to put the specified works in such state of repair as aforesaid and the costs and expenses reasonably incurred by the railways board in so doing shall be repaid to them by the Executive:
- (15) All temporary structures, erections, works, apparatus and appliances erected or placed by the Executive under the powers of this Act upon, over or under any railway of the railways board shall, as soon as reasonably practicable, be removed by the Executive at times to be agreed with, and to the reasonable

PART IV
—cont.

satisfaction of, the engineer and in such a way as to cause as little damage to railway property and as little interference with, or delay or interruption to, the traffic on the railways of the railways board as may be; and if any damage to railway property or such interference, delay or interruption shall be caused by any such failure to remove any such temporary structures, erections, works, apparatus or appliances, the Executive shall forthwith make good such damage and pay to the railways board the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of such damage, interference, delay or interruption:

- (16) If it shall be necessary for the protection and safety of railway property for the railways board to purchase any minerals for the support of such property or to pay compensation for any minerals to be left unworked for the support thereof and the specified works also derive support from such minerals, the Executive shall repay to the railways board a reasonable proportion of the amount paid by the railways board for or in respect of such minerals and the costs and expenses incurred by the railways board in relation to any such purchase or payment of compensation:
- (17) Before providing any illumination or illuminated road traffic sign on or in connection with the specified works or in the vicinity of any railway of the railways board, the Executive shall consult with the railways board and comply with their reasonable requirements in regard thereto with a view to ensuring that such illumination or illuminated sign could not be confused with any railway signal or other light used for controlling, directing or securing the safety of traffic on the railway:
- (18) Any additional expense which the railways board may reasonably incur after giving 56 days' notice to the Executive in widening, altering, reconstructing or maintaining railway property under any powers existing at the passing of this Act by reason of the existence of the specified works shall be repaid by the Executive to the railways board:
- (19) If the Executive construct any part of Work No. 1 in, on or over the disused railway viaduct shown on the deposited plans and the deposited sections or the bridges over Egerton Street, Dawson Street, Cornbrook Road and the Bridgewater Canal, or if they

appropriate any part of that viaduct or those bridges for the purpose of Work No. 1, the Executive shall effectively indemnify and hold harmless the railways board from and against all charges, claims, demands, expenses and liability which may arise under any enactment or under any deed, conveyance, covenant, agreement or other instrument relating to that viaduct or those bridges:

Provided that the railways board shall give to the Executive reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Executive:

- (20) The Executive shall be responsible for and make good to the railways board all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the railways board—

(a) by reason of the specified works or the failure thereof; or

(b) by reason of any act or omission of the Executive or of any persons in their employ or of their contractors or others whilst engaged upon the specified works;

and the Executive shall effectively indemnify and hold harmless the railways board from and against all claims and demands arising out of or in connection with the specified works or any such failure, act or omission as aforesaid and the fact that any act or thing may have been done by the railways board on behalf of the Executive or in accordance with plans approved by the engineer or in accordance with any requirement of the engineer or under his supervision shall not (if it was done without negligence on the part of the railways board or of any person in their employ or of their contractors or agents) excuse the Executive from any liability under the provisions of this section:

Provided that the railways board shall give to the Executive reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Executive:

- (21) Section 42 (For further protection of British Railways Board) of the Greater Manchester (Light Rapid Transit System) Act 1988 shall have effect as if the references therein to the light rapid transit system included references to Work No. 1 and to any parts of 1988 c. i.

c. ii Greater Manchester (Light Rapid Transit System)
(No. 2) Act 1988

PART IV
—cont.

the existing railways transferred to, and vested in, the Executive by agreement with the railways board under this Act:

- (22) Any difference arising between the Executive and the railways board under this section (other than a difference as to the meaning or construction of this section) shall be referred to and settled by arbitration.

PART V

MISCELLANEOUS

Saving for
Town and
Country
Planning Act
1971.
S.I. 1977/289.

17. In their application to development authorised by Part II (Extension of light rapid transit system) of this Act, Article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1977 shall have effect as if the authority to develop given by this Act in respect of Works Nos. 1 to 6 were limited to such development begun within 10 years after the passing of this Act.

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CHAPTER ii

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Citation.
2. Interpretation.
3. Application of Part I of Compulsory Purchase Act 1965.

PART II

EXTENSION OF LIGHT RAPID TRANSIT SYSTEM

4. Power to make works.
5. Gauge of Work No. 1.
6. Power to deviate.
7. Approval of Secretary of State.
8. Certain works to be deemed tramways, etc.
9. Agreements with railways board, etc.
10. Extension of powers, etc.

ii

c. ii Greater Manchester (Light Rapid Transit System)
(No. 2) Act 1988

PART III

LANDS

Section

11. Power to acquire lands.
12. Correction of errors in deposited plans and book of reference.
13. Disregard of recent improvements and interests.
14. Extinction of private rights of way.
15. Period for compulsory purchase of lands.

PART IV

PROTECTIVE PROVISIONS

16. For protection of British Railways Board.

PART V

MISCELLANEOUS

17. Saving for Town and Country Planning Act 1971.